

LAW AND MOTION TENTATIVE RULINGS

DATE: AUGUST 14, 2026 TIME: 8:30 A.M.

TENTATIVE RULINGS ARE NOT POSTED IN UNLAWFUL DETAINER CASES

Notice to prevailing parties: Local Rule 2.10.01 requires you to submit a proposed formal order incorporating, verbatim, the language of any tentative ruling – or attaching and incorporating the tentative by reference - or an order consistent with the announced ruling of the Court, in accordance with California Rule of Court 3.1312. **Such proposed order is required even if the prevailing party submitted a proposed order prior to the hearing with two exceptions: (1) in unopposed matters where the moving party has provided a detailed proposed order or JCC form of order, or (2) where the tentative is simply to “grant”.** Failure to comply with Local Rule 2.10.01 may result in the imposition of sanctions following an order to show cause hearing, if a proposed order is not timely filed.

No. 24CV03695

WELLS FARGO, N.A. v. ROSITANO

(UNOPPOSED) PLAINTIFF’S MOTION FOR SUMMARY JUDGMENT

The unopposed motion is granted. Judgment will be entered in favor of plaintiff.

I. BACKGROUND

This is a limited jurisdiction collection matter filed by plaintiff Wells Fargo, N.A. against defendant Stacy L. Rositano seeking \$22,285.58 for an unpaid credit card debt. There is one cause of action for breach of contract. Defendant, who is self-represented, filed an answer and affirmative defenses. Despite proper service, defendant did not oppose the motion.

II. UNDISPUTED MATERIAL FACTS

Plaintiff and defendant entered into a written agreement wherein the parties agreed to plaintiff extending credit to defendant in exchange for repayment of the principal, plus interest and applicable fees. Plaintiff issued defendant a credit card which was mailed with a card holder agreement to the address defendant provided in the credit card application and agreement. (UMF 1.) Defendant accepted the agreement and its terms by using the subject credit card in that defendant activated the card and made charges and payments, incurring a balance thereon. (UMF 2.) The agreement provided that defendant was extended credit whereby defendant could charge goods, services, and/or cash advances in exchange for the repayment of the principal amount plus interest and finance charges. (UMF 3.) Pursuant to the terms of the consumer credit card customer agreement & disclosure statement, defendant agreed to pay reasonable attorney’s fees and court costs in the event legal action was necessary to collect any balance due. (UMF 4.) It

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was understood between plaintiff and defendant that defendant would receive statements pertaining to defendant's account which would reflect all charges, payments, minimum required payments, and any fees and interest incurred. (UMF 5.)

Plaintiff sent defendant statements for the subject account reflecting all charges, payments, minimum payment and any fees and interest incurred. (UMF 6.) Plaintiff performed all of its obligations under the agreement by extending credit to defendant. (UMF 7.) Defendant made payments, charges, and incurred a balance on the subject account. (UMF 8.) Defendant disputed only one charge, credit, or balance due on the account in the amount of \$110.95, for which plaintiff credited \$104.76 back to the account. (UMF 9.)

Defendant stopped making payments towards the balance on the subject account. Defendant's last payment was on September 14, 2024, in the amount of \$20.00. (UMF 10.) Defendant breached the agreement by failing to pay as agreed, leaving an unpaid balance of \$22,285.58. (UMF 11.) The balance on defendant's account is overdue and defendant has failed to pay it or any part of it. As a result of defendant's breach, plaintiff has been damaged in the amount of \$22,285.58. (UMF 12.)

III. SUMMARY JUDGMENT LEGAL STANDARDS

In a summary judgment motion, the court must determine from the evidence presented that "there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law..." (Code Civ. Proc., § 437c, subd. (c).)¹ In making this determination, the court may rely on "affidavits, declarations ... and matters of which judicial notice shall or may be taken." (§ 437c, subd. (b).)

A plaintiff reaches its burden on summary judgment by showing prima facie evidence for each element of its cause of action. (§ 437c, subd. (p); *Scalf v. D. B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1519; *California Bank & Trust v. Lawlor* (2013) 222 Cal.App.4th 625, 630.) The burden will then shift to the defendant to show the existence of a triable issue of material fact for at least one element of the cause of action at issue. (*Ibid*). Courts "liberally construe the evidence in support of the party opposing summary judgment or summary adjudication and resolve doubts concerning the evidence in favor of that party." (*Dore v. Arnold Worldwide, Inc.* (2006) 39 Cal.4th 384, 389.) However, if all inferences reasonably deducible from the submitted evidence are uncontradicted by other inferences and there is no triable issue as to any material fact, the moving party is entitled to summary judgment or adjudication as a matter of law. (§ 437c, subd. (c); *Adler v. Manor Healthcare Corp.* (1992) 7 Cal.App.4th 1110, 1119.)

¹ All statutory references are to the Code of Civil Procedure, unless otherwise stated.

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The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. If the moving party carries this burden, it causes a shift and the opposing party is then subject to its own burden of production to make a prima facie showing that a triable issue of material fact exists. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) Each material fact must have a citation to supporting evidence. (§ 437c, subd. (b)(1).) If a triable issue is raised as to any of the facts in the separate statement, the motion may be denied. (*Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 252.)

IV. DISCUSSION

The court finds the above facts are sufficient to satisfy the elements of plaintiff's claims. The burden therefore shifts to defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. Defendant has failed to meet this burden as she has not filed an opposition and raised any triable issue of disputed fact. Plaintiff is therefore entitled to judgment against defendant in the amount of \$22,285.58.

Plaintiff's request for judicial notice of the pleadings in this action is denied; the court need not take judicial notice of its own file.

No. 23CV01708

SEASCAPE RESORT OWNERS' ASSN. v. SEASCAPE RESORT, et al.

PLAINTIFF/CROSS-DEFENDANTS SEASCAPE RESORT OWNERS' ASSOCIATION, STACIE POWER, AND ELLYN RUBIN'S MOTION FOR JUDGMENT ON THE PLEADINGS TO SECOND AMENDED CROSS-COMPLAINT

The motion is denied as moot. Based on the settlement between the Association, Ellyn Rubin, and Seascape Resort Ltd. (SRL), the court finds this motion, filed two months prior to the settlement, is largely moot both as to parties and claims. To the extent remaining cross-defendant Power seeks to narrow the issues against her posed by SRL's second amended cross-complaint, the court orders the parties to further meet and confer. (Code Civ. Proc., § 439.)

DEFENDANT SEASCAPE RESORT LTD.'S MOTION FOR GOOD FAITH SETTLEMENT

The motion for good faith settlement as to plaintiff Seascape Resort Owners' Association (Association), cross-defendant Ellyn Rubin, and defendant Seascape Resort Ltd. (SRL) (settling parties) agreement is granted. Based on the evidence before the court, the settlement's monetary